
Lloyd's Insurance
Company S.A.
Policy

LLOYD'S

Overseas Permanent & Holiday Home



Insurance Policy Wording

PORTUGAL

(Portugal Domiciled)



LLOYD'S

Coverholder

www.abbeygate.cy

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Abbeygate Insurance

Insurance Policy Wording

Permanent & Holiday Homes

Thank You for entrusting this insurance to ABBEYGATE which is a trading name of Abbeygate Insurance Brokers Limited, a Cyprus company, who are authorised to issue this Policy for and on behalf of The Insurer, Lloyd's Insurance Company S.A.

Lead Lloyd's Service Provider / Syndicate: Beazley (AFB 5361 / AFB 5311).

POLICY DOCUMENT AND DISPUTES

Please read this Policy and Schedule carefully and refer any queries to ABBEYGATE who will be happy to advise and take any action. If, however, there is a dispute that cannot be resolved, You are entitled to refer the matter as described under the heading 'Complaints Procedure - What to do if You have a complaint' on Page 19.

THE COVER INCLUDED

This Policy is divided into a number of sections. To find which sections apply to You, You should check the Schedule which is enclosed with this Policy. The Schedule also tells You how much You are insured for.

HOW TO MAKE A CLAIM

Please refer to 'How to make a claim' on Page 10 of this Policy, where You will find an explanation of what to do in the event of a claim.

If You have been provided with a claim form, this should be returned as soon as is possible with as much information as possible to ensure that Your claim can be dealt with quickly and efficiently.

WHO TO CONTACT

Should You wish to raise any queries relating to this insurance or communicate with The Insurer as required by this Policy You should get in touch with ABBEYGATE by one of the following methods:

Postal address: Shop 1 Mesogi Avenue, Paphos, 8280, Cyprus

Telephone: +357 26 819 175 Email: cyprus@abbeygate.cy

Product: Household / Holiday Homes / Property Liability / Contents - Portugal Domiciled. This wording should be read together with Your Schedule and any endorsements forming part of this Policy.

Pre-Contractual Information Notice - Portugal - LBS0083

In accordance with applicable law and in compliance with the duty of information stated by the Insurance Contract Act, the Insurer from whom cover has been requested states:

1. The insurance contract will be underwritten by Lloyd's Insurance Company S.A. with its registered office at Bastion Tower, Marsveldplein 5, 1050 Brussels, Belgium.
2. The Member State in charge of controlling the Insurer's activities is Belgium and the authority in charge of controlling the Insurer's activities is the National Bank of Belgium, Boulevard de Berlaimont 3, 1000 Brussels, Belgium.
3. The parties are free to choose the law applicable to the whole or part of the insurance contract, even if it only covers risk situated within Portuguese territory. The applicable law shall be expressly stated in the insurance contract and shall correspond to a serious interest of the parties or be related to any of the insurance contract elements. We propose that the applicable law shall be Portuguese law.
4. The Policyholder / Insured must make sure that all information provided to the Insurer is true and accurate and that no facts that might have influenced the Insurer's decision to provide insurance or the terms of that insurance were withheld. Any facts or circumstances known or that may reasonably be known by the Policyholder / Insured shall be disclosed if they may affect the Insurer's decision to accept the insurance or may be reasonably material for the evaluation of the risk, even if those facts or circumstances are not expressly asked or required in the insurance proposal query. In case of false statements or misrepresented facts or circumstances, the Insurer, within 3 (three) months, shall: (a) find the insurance contract invalid, if the Policyholder acts with fraud; or (b) modify or terminate the contract at its own discretion, if it is only negligent behaviour.
5. A summarised description of the risk, cover, sum insured, limits and exclusions, premium and method of payment, indemnity, duration and method of assignment is attached.
6. Consequences for lack of payment of the premium or an instalment of the premium: (a) only with the payment of the premium is the covering of the risk started; if the Policyholder does not pay the initial premium or its first instalment, the insurance contract will be automatically cancelled with effect from inception, producing no effects; (b) the lack of payment of the premium corresponding to subsequent annuities or its first instalment prevents the inception of the contract; (c) the termination of the insurance contract due to lack of payment of premium does not preclude the

Policyholder from the obligation of payment for the period during which the agreement has been in force, including accrued interest.

7. Any claim should be addressed in writing to the intermediary mentioned in the Policy, who will notify the Insurer. Claims should be notified to Abbeygate Insurance Brokers Limited, Shop 1 Mesogi Avenue, Paphos, 8280, Cyprus. Telephone: +357 26 819 175. E-mail: claims@abbeygate.cy.
8. By signing below the Policyholder expressly acknowledges that: (a) they have read, examined and received, in writing and prior to inception of the insurance, the pre-contractual information detailed above as well as all necessary clarifications; and (b) all facts and information provided to the Insurer are true and accurate and they did not withhold any facts that might have influenced the decision to provide insurance or the terms of that insurance.

THE POLICYHOLDER

LBS0083 03/12/2020

Definitions

Definitions are set out below and any word or phrase that has a definition is printed throughout this Policy in Bold Type.

- **Accidental Damage** Direct physical damage caused suddenly and as a result of an external, visible and unexpected cause
- **Act of Terrorism** An act, including but not limited to the use of force or violence and/or the threat thereof, of any person or group(s) of persons, whether acting alone or on behalf of or in connection with any organisation(s) or government(s), committed for political, religious, ideological or similar purposes including the intention to influence any government and/or to put the public, or any section of the public, in fear.
- **Amount Insured** The most The Insurer will pay as shown in the Schedule. Unless The Insurer states otherwise, the amount applies to each incident of loss and will be automatically restored to the full amount after The Insurer pays a loss provided You carry out The Insurer's recommendations to prevent further loss or damage.
- **Buildings** Any permanent structure used for domestic purposes within the grounds of Your Home/Holiday Home including: Fixtures and Fittings; lifts; domestic fixed fuel tanks; swimming pools; Outbuildings and Permanent Structures; gates, hedges and fences; radio and television aerials; satellite dishes, their fittings and masts; all at the address shown in the Schedule and which belong to You or for which You are legally responsible. Buildings shall not include: Any structure, or part of a structure, used for any business activity other than letting the Home/Holiday Home; Any plant or tree, other than hedges; Any land or water.
- **Contents** Household goods; Fine Art; clothing and personal property, The Insurer does not include Valuables when Your insurance cover is for a Holiday Home All of which belong to You or for which You are legally responsible. Contents shall not include the following property: Money or Credit Cards; including any item used for any business activity other than letting the Home/Holiday Home; motorised vehicles and their accessories (other than domestic gardening equipment, golf buggies and wheelchairs); caravans and trailers; watercraft; aircraft; electronic data; any animal; any plant or tree; any land or water; any part of the Buildings.
- **Credit cards** Credit, debit, charge, cheque, bank or cashpoint cards.
- **Endorsement** A change to the terms of the Policy agreed by The Insurer in writing.
- **Excess** The amount for which You are responsible as the first part of each agreed claim.
- **Fine Art** Art, antiques and collectibles of particular value due to their age, style, artistic merit or collectability including: furniture; paintings, drawings, etchings, prints and photographs; tapestries and rugs; manuscripts; porcelain and sculpture; stamps or coins forming part of a collection; gold, silver, and gold and silver-plated items; clocks and barometers; all of which belong to You or for which You are legally responsible. The Insurer does not include Valuables within Fine Art (Valuables are defined below). The Insurer does not cover Fine Art which is business property.
- **Fixtures and Fittings** All items that are fixed to and form part of the structure of the Home/Holiday Home including: decorations including wall paper, murals and stencilling; bathroom suites; fitted kitchens; flooring.
- **Heave** Upward or lateral movement of the site on which Your building(s) stand caused by swelling of the ground.
- **Home** House or apartment at the address shown in Your Schedule which is Your main residence; including the greenhouses, outbuildings and garages used for domestic purposes at the same address
- **Holiday Home** House or apartment at the address shown in Your Schedule which is not Your main residence and will be occupied by You, Family members and any paying guests; including the greenhouses, outbuildings and garages used for domestic purposes at the same address
- **Money** Cash, cheques, bank drafts, travel tickets, traveller's cheques, current postage stamps, savings certificates, premium bonds or other negotiable documents.
- **Outbuildings and Permanent Structures** Outbuildings, perimeter walls, retaining walls, terraces, patios, hard tennis courts, swimming pools, driveways, footpaths and other structures not used for living purposes (other than the main building).

- **Outdoor Items** Garden furniture, ornaments, statues, and other similar items specifically designed for outdoors only and that are normally left outdoors.
- **Period of Insurance** Length of time for which this Policy is in force as shown in the Schedule.
- **Personal Effects** Baggage, clothing, sports equipment, bicycles, portable computers and other similar items carried about the person, all of which belong to You or for which You are legally responsible. The Insurer does not include valuables and Money within Personal Effects.
- **Policy** The documents consisting of this Policy booklet, the current Schedule, statement of facts or proposal form You complete, and any Endorsement issued by The Insurer
- **Schedule** The Schedule is part of this insurance and contains details of You, the premises, the sums insured, the Period of Insurance and the sections of this insurance which apply.
- **Standard Construction** Built of brick, stone or concrete and pitched roof or flat roof with slate, tile, asphalt, metal or concrete.
- **Storm** Strong winds of 80 kilometres per hour or more, sometimes accompanied by rain, hail or snow and/or heavy rain (in excess of 25mm or more over an hour period or a proportionate amount over a shorter period of time). Judging these phenomena will be based on reports from statutory or government official authorities or, in their absence by the provision of adequate evidence whose appraisal will be the remit of experts named by the Insured and Insurer.
- **Subsidence** Downward movement of the site on which Your building(s) stand, resulting from any cause other than the bedding down of new structures or the settlement of newly made up ground.
- **Tenant's Improvements** Improvements You have made to the Fixtures and Fittings and any radio and television aerials, satellite dishes and their fittings and masts that belong to You or for which You are legally responsible. This applies where You do not own or are not responsible for insuring the Buildings.
- **The Insurer** The Insurer being Lloyd's Insurance Company S.A as named in the Schedule.
- **Unoccupied** The Home has not been lived in for 30 days in a row or does not have enough furniture to be lived in normally. The Holiday Home has not been lived in for 90 days in a row or does not have enough furniture to be lived in normally.
- **Valuables** Jewellery, watches, furs, gold, silver, gold and silver plated articles, pictures, stamp, coin or medal collections which belong to You or for which You are legally responsible.
- **Wildfire** An uncontrolled outdoor vegetation fire that spreads beyond where it started, including to insured property. Cover is subject to the Excesses and terms shown in Your Schedule and this Policy.
- **You/Your/Family** The person named as the insured in the Schedule and all permanent members of that person's household including the domestic staff who live in the Home/Holiday Home.

General Exclusions Applying to the whole of this policy

The following exclusions apply to the whole of this **Policy**. Any extra exclusions are shown in the sections to which they apply.

This **Policy** does not cover:

1. Loss, damage or liability arising out of or from a deliberate act by **You** or by anyone acting on **Your** behalf. This exclusion does not apply to theft of insured property by domestic staff.
2. Loss or damage caused by wear and tear or gradual deterioration, the use of unsuitable or defective materials or parts, rust or oxidation, moth or vermin, normal settlement, warping or shrinkage, rot, fungus, mould or infestation.
3. Loss or damage caused by anything which happens gradually, including smoke, humidity and rising damp.
4. Loss or damage caused by coastal or river erosion.
5. Loss or damage caused by Subsidence, Heave or Landslip.
6. Cyber and Data Exclusion
 - (a) Cyber loss, damage, liability, cost or expense caused deliberately or accidentally by:
 - i. the use of or inability to use any application, software, or programme;
 - ii. any computer virus;
 - iii. any computer related hoax relating to i and/or ii above.
 - (b) Electronic Data loss of or damage to any electronic data (for example files or images) wherever it is stored.
7. Loss caused by **You** not receiving goods or services **You** have paid for through any internet website.
8. Loss of, or damage to, or the cost of replacing, any equipment, integrated circuit, computer chip, computer software or any other computer-related equipment arising directly from Damage including its failure to recognise, interpret or process correctly any date as its true calendar date or to continue to function correctly beyond that date.
9. Loss, damage or liability arising directly or indirectly from nuclear reaction, nuclear radiation or radioactive contamination.

10. Loss, damage or liability directly or indirectly caused by war, invasion, act of foreign enemies, hostilities (whether war be declared or not), civil war, rebellion, revolution, insurrection, military or usurped power.
11. Loss or damage arising directly or indirectly from:
 - (a) biological or chemical contamination. This includes poisoning, or preventing or limiting the use of an object, due to the effects of any biological or chemical agent, or
 - (b) any failure in the supply of gas, water, electricity or telephone service to the **Home/Holiday Home**, and caused by or resulting from an **act of terrorism**
 - (c) pollution and contamination
12. Loss, damage or liability caused by or resulting from **Your** property being confiscated, taken, damaged or destroyed by or under the order of any government or public or local authority.
13. Any claim where **You** would be entitled to be paid under any other insurance if this **Policy** did not exist, except for any **Excess** above the amount that would be covered under the other insurance.
- 14.

INFECTIOUS OR CONTAGIOUS DISEASE EXCLUSION

Your Insurance Policy does not / This Insurance does not cover any loss, damage, liability, cost or expense, in any way caused by or resulting from: a) infectious or contagious disease; b) any fear or threat of a) above; or c) any action taken to minimise or prevent the impact of a) above. Infectious or contagious disease means any disease capable of being transmitted from an infected person, animal or species to another person, animal or species by any means.

Conditions Applying to the whole of this policy

1. Information

In deciding to accept this **Policy** and in setting the terms and premium, we have relied on the information **You** have given us. **You** must take care when answering any questions, we ask by ensuring that all information provided is accurate and complete.

If we establish that **You** deliberately or recklessly provided us with false or misleading information we will treat this **Policy** as if it never existed and decline all claims.

If we establish that **You** carelessly provided us with false or misleading information it could adversely affect **Your Policy** and any claim. For example, we may:

- treat this **Policy** as if it had never existed and refuse to pay all claims and return the premium paid. We will only do this if we provided **You** with insurance cover which we would not otherwise have offered;
- amend the terms of **Your** insurance. We may apply these amended terms as if they were already in place if a claim has been adversely impacted by **Your** carelessness;
- reduce the amount we pay on a claim in the proportion the premium **You** have paid bears to the premium we would have charged **You**; or cancel **Your Policy** in accordance with the Right to cancel condition below.

You must tell **The Insurer** about any change in the information **You** have provided. **The Insurer** may then amend the terms of this **Policy**. If **You** are in any doubt, **You** should speak to ABBEYGATE.

2. Non-disclosure, misrepresentation and false claims

1. If **You** make a fraudulent claim under this insurance contract, **The Insurer**: a) Is not liable to pay the claim; and b) May recover from the Insured any sums paid by **The Insurer** to **You** in respect of the claim; and c) May advise **You** that the contract has been terminated with effect from the time of the fraudulent
2. If **The Insurer** exercises its right under clause (1)(c) above: a) **The Insurer** shall not be liable **You** in respect of a relevant event occurring after the time of the fraudulent act. A relevant event is whatever gives rise to **The Insurer's** liability under the insurance contract (such as the occurrence of a loss, the making of a claim, or the notification of a potential claim); and; b) **The Insurer** need not return any of the premiums **You** have paid.

3. Building works

If **You** intend to undertake any work to extend, renovate, build or demolish any part of the **Buildings** and the estimated cost is more than Euro 5,000, **You** must tell **The Insurer** about the work at least 30 days before the work starts and before **You** enter into any contract for the works. If **You** do not, **The Insurer** will not have to pay any claim caused by or resulting from the building works. **You** do not have to tell **The Insurer** if the work is for redecoration only. **You** are required to undertake that Building Sub-Contractors has sufficient Liability Cover in force

4. Premium payment

It is a condition to Insurer's liability that no payment will be made under this **Policy** unless **You** have paid the full premium.

5. Correct amounts insured

When accepting this insurance, **The Insurer** expects that the **Amount Insured** will represent the full value of the property insured.

- (a) For **Buildings**, the full value is the estimated cost of rebuilding if the **Buildings** were destroyed (this is not the same as the market value), not including fees and extra expenses. **The Insurer** allows 10% of the cost of repairs for fees and extra expenses (see paragraph 5 of Section A – **Buildings** and Tenant's Improvements).
- (b) For Tenant's Improvements, the full value is the cost to repair or replace as new.
- (c) For **Contents**, the full value is the current cost as new.
- (d) For **Fine Art**, the full value is the current market value.

Indexation: **The Insurer** will adjust the **Amount Insured** for **Buildings** and **Contents** at each renewal according to an appropriate index. However, **You** should check **Your** amounts insured when **You** renew **Your Policy**, to make sure that they reflect the full value of the **Buildings** and **Contents**.

6. Care

You must take steps:

- (a) to protect the property insured under this **Policy** and to keep it in good condition and repair;
- (b) to prevent accident or injury. If **You** do not, **The Insurer** will not have to pay any related claim.

7. Cancellation

You have the right to cancel **Your Policy** during a period of 14 days after the later of the day of purchase of the insurance or the day on which **You** receive **Your Policy** documentation. **You** may cancel this **Policy** by writing to: Abbeygate Insurance Brokers Ltd, Shop 1 Mesogi Avenue, Paphos, 8280, Cyprus.

If cancelled within the 14 day period A full return of premium will be made.

You may cancel this **Policy** at any time by writing to **The Insurer**. If **You** have not made a claim, **You** will be allowed a premium refund on a pro rata basis.

The Insurer may cancel this **Policy** by sending **You** 30 days' notice by recorded post to **Your** correspondence address shown in the **Schedule**. **The Insurer** will return any premium **You** have paid for any **Period of Insurance** left.

However, **The Insurer** will not return any premium if the amount is less than Euro 40 in any case.

If **You** pay the premium by instalments and an instalment remains unpaid after 14 days, **The Insurer** may cancel this **Policy** from the date the last instalment was due.

8. Third parties

You and **The Insurer** are the only parties to this **Policy**. Nothing in this **Policy** is intended to give any person any right to enforce any term of this **Policy** which that person would not have had but for the Contracts (Rights of Third Parties) Act 1999.

9. Joint insureds

The most **The Insurer** will pay is the relevant **Amount Insured**. If there is more than one of **You**, the total amount **The Insurer** pays will not exceed the amount **The Insurer** would be liable to pay to any one of **You**.

10. Law and Language Applicable to Contract

This insurance will be governed by Cyprus Law, you and we agree to submit to the exclusive jurisdiction of the courts of Cyprus. The language and all communication with you will be in English.

Service of Suit and Jurisdiction Clause - Portugal - LBS0081

It is agreed that this Insurance shall be governed exclusively by the law and practice of Portugal, and any disputes arising under, out of or in connection with this Insurance shall be exclusively subject to the jurisdiction of any competent court in Portugal. All summonses, notices or processes requiring to be served upon Lloyd's Insurance Company S.A. for the purpose of instituting any legal proceedings against it in connection with this Insurance may be served if addressed and delivered to: Jose Nunez, General Representative for Portugal Lloyd's Insurance Company S.A. c/o Cruz, Menezes & Associados Rua Victor Cordon, 10 A, 4 e 5 Pisos 1249-202 Lisboa, Portugal E-mail: jose.nunez@lloyds.com This Service of Suit and Jurisdiction Clause will not be read to conflict with or override the obligations of the parties to resolve their disputes as provided for in any other clause in this Policy and, to the extent required, shall apply to give effect to that process. LBS0081 01/12/2020

Several Liability Notice - LSW1001

The subscribing insurers' obligations under contracts of insurance to which they subscribe are several and not joint and are limited solely to the extent of their individual subscriptions. The subscribing insurers are not responsible for the subscription of any co-subscribing insurer who for any reason does not satisfy all or part of its obligations.

08/94 LSW1001 (Insurance)

Minimum Security and Protection Clause

It is **Your** duty to ensure that all protections provided for the security of the **Home/Holiday Home** and **Contents** are:

- maintained in good working order
- in full and effective operation whenever **You** or any persons authorised are absent from the premises or have retired for the night.

Loss by theft or attempted theft from the **Home/Holiday Home** is not covered unless the following security measures are in operation and there must be force and violence to gain entry into property:

- a) The final exit door is fitted with: i) a key operated European cylinder lock or Yale lock; or ii) a lock conforming to BS3621: 1998 or to a higher specification
- b) Other external doors excluding sliding patio or balcony doors to be fitted with either: i) A lock to the standard in a) above or ii) Key operated security devices top & bottom in addition to the existing locks iii) Fixed or concertina bar/grilles with locks or bolting top and bottom into the structure of the building
- c) Sliding patio doors and Balcony Doors which are accessible from the ground are to be fitted with either: i) Fixed minimum security internal locking system which is activated only by internal handles and not accessible externally. ii) Key Operated Locks or Security locks activated only by internal handles iii) Security Bolts top and bottom in addition to any existing lock iv) Fixed or concertina bar/grilles with locks or bolting top and bottom into the structure of the building
- d) All opening windows ground floor and those that are accessible on other floors are fitted with either: i) Fixed minimum security internal locking system which is activated only by internal handles and not accessible externally. ii) Key operated locks or security locks activated only by internal handles iii) Security bolts top and bottom in addition to any existing lock iv) Full length security shutters locked internally v) Metal grilles or Rejas embedded into the wall

14. Alarm Conditions (only operative if shown on **Your Schedule**)

An intruder alarm is required to be installed at the premises and **You** undertake that:

1. The Intruder Alarm is kept in an effective condition and operating at all times
2. A Maintenance contract is kept continuously in force with the installers of the intruder alarm (or other company agreed in writing by **The Insurers**), and the company responsible for the maintenance contract is immediately advised by **You** of any apparent defects or failures in the intruder alarm or signaling as soon as reasonably practicable.
3. Any detection devices and their circuitry connection for continuous functioning are fully operable at all times
4. The intruder alarm is put into full and effective operation whenever the premises or part thereof are left unattended and when **You** or **Your Family** have retired for the night
5. We are notified as soon as reasonably practicable :
 - a. If the police or any other central signal monitoring body gives written warning of possible or intended withdrawal of response.
 - b. Before any alteration to or replacement of the intruder alarm and its associated maintenance contract is made.
 - c. In respect of any impairment

15. AB106 Safe Conditions (only operative if shown on **Your Schedule**)

This insurance excludes theft in respect of any jewellery or watches or any other **valuables** from the **Home** unless:

- a. such items are kept in a locked safe or strongbox weighing over 100kgs which must not be in an open position or,
- b. in a safe which is anchored to or completely embedded in the wall or floor, suitably concealed. Whenever the premises are left unattended by **You** or any authorised representatives, all keys and duplicate keys

to the safe must be removed from the **Home**.

16. AB99 Deletion of Cover Clause (only operative if shown on **Your Schedule**)

It is hereby declared and agreed that the cover of '**Subsidence** or **Heave** of the site on which **Your** building(s) stand or land belonging to **Your** building(s), or landslip' is hereby deleted from the **policy** wording.

17. Unoccupancy

It is a requirement that **Your Home/Holiday Home** is inspected twice a month from the date it was last occupied, this can be done by Yourself or any nominated key holder. If **You** fail to notify any potential claim during the inspections it may prejudice **Your** insurance and result in the claim not being met.

Sanctions

We shall not provide any benefit under this contract of insurance to the extent of providing cover, payment of any claim or the provision of any benefit where doing so would breach any sanction, prohibition or restriction imposed by law or regulation.

LMA5213 12 March 2014

Territorial Exclusion: Russia, Ukraine and Belarus - LMA5583B

Notwithstanding anything to the contrary in this Policy, this Policy excludes any loss, damage, liability, cost or expense of whatsoever nature, directly or indirectly arising from or in respect of any:

- i. entity domiciled, resident, located, incorporated, registered or established in an Excluded Territory;
- ii. property or asset located in an Excluded Territory;
- iii. individual that is physically in an Excluded Territory;
- iv. claim, action, suit or enforcement proceeding brought or maintained in an Excluded Territory;
- v. payment in an Excluded Territory.

This exclusion will not apply to any coverage or benefit required to be provided by the insurer by law or regulation applicable to that insurer, however, the terms of any sanctions clause will prevail.

For purposes of this exclusion, 'Excluded Territory' means:

- Belarus (Republic of Belarus); and - Russian Federation; and - Ukraine, including any disputed regions of Ukraine and including the Crimean Peninsula.

All other terms, conditions and exclusions remain unchanged.

LMA5583B

8 March 2023

Language Declaration Clause - LBS0007

The insured has declared their understanding of, and has requested for the contract of insurance to be provided in, the English language. The insured confirms they understand such contract and agree to be bound by its terms and conditions.

LBS0007 01/01/2019

MAINTENANCE AND CHECKING CONDITIONS

A well-maintained building should withstand all but the most severe weather conditions.

It is important to remember that **You** are responsible for maintaining **Your** home in a good state of repair.

If the buildings have not been maintained in a good state of repair, when assessing a claim, we will take into account the condition of **Your** property and we may refuse to pay the claim or we may reduce the amount of any payment we make for the claim. In some circumstances **Your** policy may not be valid.

We will not cover the costs of repairs or replacements, where the costs arise through **You** failing to regularly maintain the buildings properly.

If the property suffers from some form of structural weakness that results in **storm** damage being greater than expected, insurers are entitled to limit their compensation to the cost of restoring the property only to its weakened state.

We will check what the weather was like when the damage happened and may ask for pictures or ask an expert to look at the damage to decide if it was caused by a **storm** and confirm that a lack of maintenance did not cause or contribute to the damage.

A **Storm** can highlight defects rather than cause them and damage due to lack of maintenance, wear and tear or which happens gradually is not covered.

These are the conditions of the insurance that **You** need to meet as **Your** part of this contract.

(a) This **policy** covers the costs of unexpected loss or damage. It does not cover:

(i) Maintenance costs such as refixing loose roof tiles, repointing brickwork or replacing guttering. **You** must make sure that **Your Buildings** are maintained in a good state of repair.

(b) We take into account the condition of the property at the time of a **storm** damage is said to have occurred. **You** must undertake the following checks/repairs to ensure that:

(i) External walls are sealed and any gaps in external walls and foundations are restored with foam or caulk to prevent cold air and water entering the property. **You** might even want to consider painting the walls with a waterproof coating.

(ii) Gardens are rid of overhanging, loose or dead branches to help prevent damage in windy weather.

(iii) Gutters are cleared to avoid a build-up of leaves and other debris. High winds can seriously damage guttering, so regular checks throughout the year are really important. **You** might also want to invest in heat tape to run around the underside of **Your** guttering to prevent ice from forming.

(iv) Internal and external pipes are insulated and all external pipes and any internal pipes that are in unheated areas (e.g. in the basement or loft), with foam or rubber tubes. These tubes should then be checked regularly as they can erode over time.

(v) Visibly check the roof for any dislodged or damaged tiles which could lead to water ingress

How to make a Claim

If **You** wish to make a claim, **You** may either contact the broker who arranged cover for **You**, who will notify Us of **Your** claim, or Us. When submitting a claim form **You** must give **Your Policy** number. When **You** become aware of an event which is likely to result in a claim under this **Policy**:

If **You** wish to make a claim, **You** will need to contact in the first instance:

Abbeygate Insurance Postal address: Shop 1 Mesogi Avenue, Paphos, 8280, Cyprus

Telephone: +357 26 819 175 Email: claims@abbeygate.cy

1. **You** must:

- a. Provide in writing full details of Injury or loss or Damage and in any event within:
 - seven (7) days if caused by riot or civil commotion;
 - or thirty (30) days if from any other cause.
- b. Tell the police as soon as reasonably possible if loss or Damage has been caused by theft, attempted theft or malicious act or vandalism and help Us retrieve and identify the Property;
- c. as soon as reasonably possible send Us all written correspondence, claim, writ or summons without answering them;
- d. Supply at **Your** own expense, all reports, certificates, plans, specifications, quantities information and help We ask for;
- e. Give Us all information and evidence, including written estimates and proof of ownership and value that We ask for. **You** must pay any costs involved in doing this.

2. **You** must not:

- a. Leave any Property for Us to deal with;
- b. Dispose of any Damaged items until We have had the chance to inspect them;
- c. Repair any Damaged items until We have had the chance to inspect them;
- d. Admit liability or promise to make a payment without Our permission.

3. We may do the following:

- a. Keep the insured Property and manage the salvage;
- b. Negotiate, defend or settle (in **Your** name and on **Your** behalf) any claim made against **You**;
- c. Prosecute (in **Your** name for Our own benefit), any other person in respect of any amount We have paid or must pay;
- d. Appoint a loss adjuster to deal with the claim;
- e. Arrange to repair the Damage to the insured Property.

4. **You** may do the following: Carry out temporary emergency repairs to make good the Property following Damage caused by an insured peril. This is limited to the following without prejudicing **Your** position:

- a. Boarding up following Damage to windows, doors, fan lights and skylights to make the Property secure. Our acceptance of liability for any such temporary repair will always be

subject to the terms and conditions of the **Policy**.

5. Our rights:

- a. We may take, or ask **You** to take, any action to get back, from anyone else, any costs We have to pay under this **Policy**. We may do this before or after We pay **Your** claim;
- b. We may take over the defence or settlement of a claim against **You** by another person.

6. Contribution - other insurances: If **You** have any other insurance policies which cover the same loss, Damage or liability as this **Policy**, We will pay only Our share of the claim.

How much will The Insurer pay?

The basis upon which **Your** claim will be settled is as follows.

When **The Insurer** pays **Your** claim, it will deduct:

- the general **Excess** of Euro 150
- or Euro 375 **Excess** for Escape of Water damage
- or Euro 1500 **Excess** or 2% of the total insured value (TIV) whichever is the greater for earthquake and/or volcanic eruption.

Section A: BUILDINGS

The Insurer will pay at its option the cost of rebuilding or repair subject to the rebuilding or repairs being carried out. If the **Amount Insured** is less than the rebuilding cost **The Insurer** will only pay the same proportion of the loss or damage as the **Amount Insured** bears to the full rebuilding cost. For example, if the **Amount Insured** represents only one half of the rebuilding cost **The Insurer** will only pay for one half of the amount lost or damaged.

This provision will not be applied where:

- the total claim does not exceed the Euro 750 **Excess**.
- at the time of a claim the **Amount Insured** represents more than 85% of the full rebuilding cost and subject to **You** re-valuing the **Amount Insured** thereafter.

The most **The Insurer** will pay is the **amount insured**.

Tenant's Improvements; The Insurer will at its option repair or replace the damaged parts.

The following perils are included automatically if the Buildings are covered under this section. If only Tenant's Improvements are covered under this section, **You** are only insured for Standard Perils 1. Fire, 2. Wildfire, 3. Storm or flood and 4. Weight of snow, as below.

Standard Perils

Damage caused by:

1. **Fire, lightning, explosion, earthquake or volcanic eruption. We will not pay:** *The first Euro 1500 or 2% of the total insured value (TIV) whichever is the greater for any loss or damage caused by earthquake or volcanic eruption.*
2. **Wildfire We will not pay:** *the first 25% of the claimable amount for any loss or damage caused by Wildfire if endorsed on your policy schedule.*
3. **Storm or flood. We will not pay:**
Loss or damage caused by wind and/or materials transported by wind when wind speed recorded at the time of loss or damage is below 80 kilometres per hour. If The Insurer alleges that by reason of this limitation any loss damage, cost or expense is not covered the burden of providing the contrary shall be upon You. Loss or damage caused by rain when the recorded rainfall at the time of loss or damage is below 25mm. If The Insurer alleges that by reason of this limitation any loss damage, cost or expense is not covered the burden of providing the contrary shall be upon You. Loss of or damage to gates, hedges or fences, pergolas or other open fronted and sided structures. This exclusion does not apply to pergolas or other open fronted and sided structures which are:
 - a. *constructed entirely of solid timber, steel or aluminium (excluding any use of composite materials, or fabric components); and*
 - b. *permanently affixed to the main dwelling (i.e., physically attached to the primary residential building in accordance with the manufacturers instructions.*
5. **Escape of Water from and frost damage to fixed water tanks, apparatus and pipes. We will not pay:** *Damage to swimming pools; Loss or damage while the **Home/Holiday Home** is **Unoccupied** unless **You** keep the **Home/Holiday Home** heated throughout or **You** shut off the water supply and drain fixed water tanks, apparatus and pipes.*
6. **Leakage of oil from any fixed domestic heating installation. We will not pay:** *losses arising from faulty workmanship.*
7. **Smoke. We will not pay:** *Loss or damage arising from gradually operating causes.*
8. **Theft or attempted theft. We will not pay:** *Loss or damage unless violence and force are used to enter or leave the **Home/Holiday Home**. If the incident is not reported to the local police within 24 hours upon discovery. Loss or Damage in **Excess** of Euro 2,500 when the **Buildings** are **Unoccupied**.*
9. **Collision or impact involving:**
 - (i) any vehicle, aircraft (or other aerial device or anything dropped from them) or animal;
 - (ii) aerials, satellite dishes or their fittings;
 - (iii) falling trees, branches, telegraph poles or lamp-posts. *In respect of paragraph (iii) only, **we will not pay:** loss or damage caused by lopping, topping or felling on **Your** property; loss of or damage to gates, hedges and fences;*
10. **Riots, violent disorder, civil commotion and labour disturbances. We will not pay:** *Loss or damage while the **Buildings** are not occupied.*
11. **Vandalism and acts of malicious persons.**
12. **Electrical Power Surge We will not pay:** *Loss or damage:*
 - (i) *in excess of Euro 1,000 in any one **Period of Insurance**,*
 - (ii) *caused by wear and tear or use contrary to the manufacturer's recommendation.*
13. **Glass and sanitary ware** *Accidental damage of fixed glass (including the cost of removing and replacing double glazing frames), solar panels, fixed sanitary ware and ceramic hobs, all forming part of the **Buildings** or **Tenant's Improvements** or for which **You** are legally responsible as tenant, provided it happens during the **Period of Insurance**.*

14. **Underground pipes and cables** Accidental damage occurring during the **Period of Insurance** to domestic fuel oil pipes, underground service pipes and cables, sewers and drains for which **You** are legally responsible.
15. **Loss of rent and alternative accommodation** Loss of rent which **You** cannot recover as landlord, OR **Your** essential and necessary costs of alternative accommodation, while the **Home/Holiday Home** cannot be lived in because of an insured loss or damage **The Insurer** has agreed to pay for under this section. The most we will pay is for 6 months maximum amount not exceeding 10% of the total **Amount Insured** meaning Building and/or Contents. If the **Buildings** insured are a **Home**, we will cover **Your** essential and necessary costs of alternative accommodation. If the **Buildings** insured are a **Holiday Home**, we will cover loss of rent which **You** cannot recover as landlord.
- We will not pay:** Loss of rent for bookings taken after the original damage occurred in respect of **Holiday Homes**.
16. **Fees and extra expenses** The extra expenses involved in rebuilding or repairing the **Buildings** following physical loss or physical damage insured under this section. This means:
- Fees to architects, surveyors and consulting engineers;
 - The cost of clearing the site and making the **Buildings** safe;
 - The cost of doing anything required by any government or local authority, but only if: **You** received notice of the requirement after the damage happened, and the **Buildings** were originally built according to any government and local authority regulations in force at that time. The most **The Insurer** will pay in total is an amount equal to 10% of the insured cost of repairs to the **Buildings**. **We will not pay:** The cost of preparing a claim.
17. **Trace and access** The cost of locating the source of a leak of water from any fixed water tanks, apparatus and pipes, including subsequent repairs to walls, floors or ceilings. **The Insurer** will only pay if **You** have had its permission to carry out such works. The most **The Insurer** will pay is Euro 2,500 in total for any one **Period of Insurance**.
18. **Landlord's Buildings and Fixtures and Fittings** Physical loss or physical damage to the landlord's **Buildings** and **Fixtures and Fittings** occurring during the **Period of Insurance** and directly caused by the circumstances listed in Standard Peril 1. Fire, lightning, explosion, earthquake or volcanic eruption. The most **The Insurer** will pay is Euro 15,000 any one **Period of Insurance**. This cover only applies if the loss or damage has affected the **Home/Holiday Home** and if **You** prove to us that **The Insurers** of the landlord's **Buildings** and **Fixtures and Fittings** have refused to pay the claim.
19. **Garden** The cost **You** incur in making good physical loss or physical damage to the garden occurring during the **Period of Insurance** and directly caused by fire, lightning, explosion, earthquake, theft or attempted theft, collision or impact, or vandalism. The most we will pay is Euro 1,000 for each and every incident of loss or damage, but not more than Euro 250 for any one tree, shrub or plant.

ACCIDENTAL DAMAGE OPTIONAL COVER (not covered as standard)

The Schedule will state if this cover is in force (for permanent occupants only).

The **Buildings** are insured against accidental damage by external and visible means occurring during the **Period of Insurance**.

We will not pay: Damage:

- (i) to any part of the **Buildings** loaned or let to anyone (other than **Your** relatives)
- (ii) Caused by mechanical and/or electrical fault or breakdown; inherent defect; corrosion; moth or vermin; aridity; humidity; exposure to light or extremes of temperature; alteration; extension; cleaning, repair, renovation, restoration or similar process; misuse and faulty workmanship or the use of any faulty materials.
- (iii) excluded under any other paragraph of this section.

Section B: CONTENTS

The Insurer will at its option decide whether to repair or replace the lost or damaged item or to make a cash settlement based on the replacement cost. **The Insurer** will not deduct any amount for wear and tear.

For **Fine Art**, however, any cash settlement will be based on the market value of the item on the date the loss happened.

If the **Amount Insured** is less than the full replacement cost **The Insurer** will only pay the same proportion of the loss or damage as the **Amount Insured** bears to the full replacement cost. For example, if the **Amount Insured** represents only one half of the full replacement cost **The Insurer** will only pay for one half of the amount lost or damaged.

This provision will not be applied where:

- the total claim does not exceed Euro 750.
- at the time of a claim the **Amount Insured** represents more than 85% of the full rebuilding cost and subject to **You** re-valuing the **Amount Insured** thereafter.

The most **The Insurer** will pay is the **amount insured**.

Contents The most **The Insurer** will pay for;

- any one item is Euro 3,000 unless otherwise shown on the **Schedule**;

- gold, silver, and gold and silver-plated household items other than Jewellery is Euro 1,500 in total for each incident of loss;

The Standard Perils

- Fire, lightning, explosion, earthquake or volcanic eruption. We will not pay:** The first Euro 1500 or 2% of the total insured value (TIV) whichever is the greater for any loss or damage caused by earthquake or volcanic eruption.
 - Wildfire We will not pay:** the first 25% of the claimable amount for any loss or damage caused by Wildfire if endorsed on your policy schedule.
 - Storm or Flood. We will not pay; loss of or damage to;**
 - Contents in domestic outbuildings not of Standard Construction.**
 - Your Outdoor Items occurring during the Period of Insurance.**
 - Weight of snow. We will not pay:** Loss of damage to Contents in domestic outbuildings not of Standard Construction; unless the main building is also damaged at the same time.
 - Escape of Water from fixed water tanks, apparatus and pipes.**
 - Leakage of oil from any fixed domestic heating installation.**
 - Smoke. We will not pay:** Loss or damage arising from gradually operating causes.
 - Theft or attempted Theft. We will not pay:** Loss or damage unless violence and force are used to enter or leave the **Home/Holiday Home**. If the incident is not reported to the local police within 24 hours upon discovery.
 - Collision or impact involving:**
 - any vehicle, aircraft (or other aerial device or anything dropped from them) or animal;
 - aerials, satellite dishes or their fittings;
 - falling trees, branches, telegraph poles, pylons or lamp posts. *In respect of paragraph (iii) only, we will not pay:* Loss or damage caused by lopping, topping or felling on **Your** own property.
 - Riots, violent disorder, civil commotion and labour disturbances, vandalism and acts of malicious persons. We will not pay:** Loss or damage while the **Buildings** are **Unoccupied**.
 - Electrical power surge We will not pay:** Loss or damage:
 - in **Excess** of Euro 1,000 in any one **Period of Insurance**
 - caused by wear and tear or use contrary to the manufacturer's recommendation
 - Glass** Accidental damage of mirrors, glass tops to furniture, fixed glass in furniture and ceramic hobs, provided it occurs during the **Period of Insurance**.
- We will not pay:** any claim that is insured under Standard Perils 3. Storm or flood of Section A - Buildings and Tenant's Improvements.
- Rent** Rent which **You** have to pay as a tenant while the **Home/Holiday Home** cannot be lived in because of loss or damage **The Insurer** has agreed to pay for under this section. The most we will pay is an amount equal to 10% of the **Contents Amount Insured**.
- We will not pay:** This benefit if **The Insurer** pays **You** for alternative accommodation as a result of the same loss.
- Alternative accommodation** Your costs of alternative accommodation as occupier but not owner of the **Home/Holiday Home**, while the **Home/Holiday Home** cannot be lived in because of loss or damage **The Insurer** has agreed to pay for under this section. The most we will pay is an amount equal to 10% of the **Contents** amount insured.
- We will not pay:** this benefit if **The Insurer** pays **You** for rent as a result of the same loss.
- Replacement Locks** The cost of changing the locks if the keys to external doors, windows, safes and alarms of the **Home/Holiday Home** are stolen during the **Period of Insurance**. The most **The Insurer** will pay is Euro 500 in total for any one **Period of Insurance**.
 - Outdoor Items** Physical loss or physical damage to **Your Outdoor Items** (specifically designed for outdoor use) occurring during the **Period of Insurance** and directly caused by a peril against which **Your Contents** are insured. **The Insurer** will decide whether to replace or repair the lost or damaged item or to make a cash settlement based on the replacement cost. **The Insurer** will not deduct an amount for wear and tear. The most **The Insurer** will pay is Euro 1,500 in any one **Period of Insurance**.
 - Freezer Contents** The **Contents** of **Your** freezer and refrigerator are insured against spoilage caused by accidental failure of the freezer or refrigerator, refrigerant fumes escaping from the equipment or accidental failure of the electricity or gas supply which occurs during the **Period of Insurance**. The most **The Insurer** will pay is Euro 1,000 in total in any one **Period of Insurance**.

We will not pay: Loss or damage:

- caused by deliberate act of the supply authority or company or as a result of any strike or withdrawal of labour
- caused by deliberate act of **You** or anyone in the **Home/Holiday Home** at **Your** invitation
- involving a freezer unit 15 years old or more.

18. **Loss of Metered Water or Oil** The cost of lost metered water or domestic heating oil following accidental damage to fixed domestic water or heating installations situated in or on the **Home/Holiday Home**. The most **The Insurer** will pay is Euro 1,500 in total in any one **Period of Insurance**.

We will not pay: *Loss or damage while the **Home/Holiday Home** is **Unoccupied**.*

19. **Golf** **The Insurer** will pay for: - Physical loss or physical damage to golfing trophies in **Your** care or custody, - The costs of hiring replacement equipment if **Your** golfing equipment is lost or damaged during overseas travel.

20. **Temporary removal** The **Contents** are covered while temporarily removed from the **Home/Holiday Home** for up to 90 days during the **Period of Insurance**, against physical loss or physical damage directly caused by:

- any circumstances described in Standard Perils 1. Fire, lightning, explosion, earthquake or volcanic eruption of this section, but only while the **Contents** are in, or are being moved to or from, any occupied private **Home/Holiday Home** or any commercial building within the country in which the **Home/Holiday Home** is situated. - fire, lightning, explosion or earthquake, while the **Contents** are anywhere else within the country in which the **Home/Holiday Home** is situated. **We will not pay:** *Loss or damage:*

(i) to **Money** and valuables;

(ii) from, in or on any unattended vehicle;

(iii) to an item being transported unless it is adequately and packed and secured, given the nature of the item and how it is transported;

(iv) excluded under Standard Perils 1. Fire, lightning, explosion, earthquake or volcanic eruption, of this section.

21. **Wedding gifts** Wedding gifts are covered against loss or damage caused by circumstances described in Section B above, for one month before and one month after **Your** wedding day or the wedding day of any member of **Your Family**. Cover applies anywhere in the country where the **Home/Holiday Home** is situated while in the **Home/Holiday Home**, the building where the reception is held, at the married couple's **Home/Holiday Home**, or in transit between any of the places specified above. The most **The Insurer** will pay is 10% of the **Contents** amount insured.

22. **Christmas gifts** The **Contents Amount Insured** is automatically increased by 10% during the month of December.

23. **Title deeds** The cost of preparing new title deeds to the **Buildings** if they are lost or damaged by circumstances described in Section B: **Contents** above when kept in the **Home/Holiday Home** or in a bank. The most **The Insurer** will pay is Euro 750 per **Period of Insurance**.

24. **Fatal injury** If **You** suffer a physical injury as a result of fire or violence by burglars in **Your Home/Holiday Home** during the **Period of Insurance** and **You** die from the injury within 12 months, **The Insurer** will pay a benefit of Euro 7,500 for each adult who dies. For the purpose of this extension, the definition of "**You**" does not include domestic staff who live in the **Home/Holiday Home**.

25. **Office equipment** Loss or damage to office equipment used in connection with **Your** business whilst in the **Home/Holiday Home** caused by circumstances as described in Standard Perils 1. Fire, lightning, explosion, earthquake or volcanic eruption above. The most **The Insurer** will pay is Euro 1,500 in total in any one **Period of Insurance**.

What is not covered:

(i) *Loss or damage caused whilst the **Home/Holiday Home** is lent, let, sub-let or **Unoccupied**.*

(ii) *Loss of or damage to items not specifically used for clerical purposes.*

ACCIDENTAL DAMAGE OPTIONAL COVER (not covered as standard)

The Schedule will state if this cover is in force.

The **Contents** are insured while within the **Home/Holiday Home** against **Accidental Damage** by external and visible means occurring during the **Period of Insurance**.

The Insurer will not pay:

Damage:

(i) to contact or corneal lenses, hearing aids, **Money** and **Credit Cards**, plants, food or drink

(ii) caused by chewing, scratching, tearing or fouling by domestic pets

(iii) within any part of the **Buildings** loaned or let to anyone (other than **Your** relatives)

(iv) caused by mechanical and/or electrical fault or breakdown; known defect; rust or oxidation; moth or vermin; warping or shrinkage; aridity; humidity, exposure to light or extremes of temperature; cleaning, repair, renovation, restoration or similar process; misuse and faulty workmanship or the use of any faulty materials

(v) excluded under any other paragraph of this section.

Section C: VALUABLES AND PERSONAL EFFECTS

If **The Insurer** repairs a damaged item, **The Insurer** will also pay for any loss in value. The most **The Insurer** will pay in total is the **Amount Insured** for that item. If any items which have an increased value because they form part of a pair or set are lost or damaged, any payment **The Insurer** makes will take into account the increased value. If **The Insurer** pays the full **Amount Insured** for an item, pair or set, **The Insurer** will then have the right to take possession of it.

The Insurer will decide whether to repair, replace or pay the value of the damaged item.

The most we will pay is:

- for specified items listed in **Schedule** or the value shown on the specification held by us or **Your** agent, if over Euro 3000 a recent valuation or receipt is required
- for unspecified items the replacement cost as new of the item on the date of loss, but never more than Euro 1500 for any item, pair or set.

The most **The Insurer** will pay in total for each incident of loss is the **Amount Insured**. **The Insurer** will not deduct any amount for wear and tear.

Your Schedule states if this section is in force

What is covered?

The Insurer will insure the **valuables** and **Personal Effects** up to the **Amount Insured** against physical loss or physical damage which happens during the **Period of Insurance** within the geographical limits shown in the **Schedule**.

1) New Possessions

The Insurers will allow an increase of up to 15% of the total **Amount Insured** for **Valuables** to cover any items **You** acquire during the **Period of Insurance**. **The Insurer** will only pay this if **You** tell it about the new possession within 60 days of acquisition and pay an extra premium.

2) Money

If **Your valuables** or **Personal Effects** are insured under this section, **The Insurer** will also insure **Your Money** against physical loss or physical damage which happens during the **Period of Insurance** anywhere in the world. The most **The Insurer** will pay is Euro 500 in total for each incident of loss.

3) Credit Cards

If **Your valuables** or **Personal Effects** are insured under this section, **The Insurer** will cover the fraudulent use of **Credit Cards** by an unauthorised person following theft from the **Home/Holiday Home**. The most **The Insurer** will pay is Euro 500 in total for each incident of loss.

3) Credit Cards

If **Your valuables** or **Personal Effects** are insured under this section, **The Insurer** will cover the fraudulent use of **Credit Cards** by an unauthorised person following theft from the **Home/Holiday Home**. The most **The Insurer** will pay is Euro 500 in total for each incident of loss.

We will not pay;

*(i) Loss of **Credit Cards** not reported to the police and the issuing authority within 24 hours of discovery;*

*(ii) Loss from unauthorised use by **You** or **Your Family**;*

*(iii) Loss from fraudulent use by any unauthorised person of **Credit Cards**, charge or cash cards and/or **Personal Identification Numbers**, unless **You** have complied with the terms and conditions under which the card was issued.*

What is not covered? – the following extra exclusions also apply to this section. **The Insurer** does not cover the following:

- (i) Loss or damage caused by:
 - (a) dryness or humidity, being exposed to light or extreme temperatures, unless the loss or damage is caused by fire or by water leaking from fixed water tanks, apparatus and pipes damaged by frost;
 - (b) cleaning, repair, renovation, restoration, or any similar process;
 - (c) domestic pets or vermin;
 - (d) pollution or contamination.
- (ii) Mechanical faults or breakdown.
- (iii) Loss of or damage to sports equipment and guns while they are being used.
- (iv) Loss or damage arising directly or indirectly from:
 - (a) biological or chemical contamination. This includes poisoning, or preventing or limiting the use of an object, due to the effects of any biological or chemical agent, or
 - (b) any failure in the supply of gas, water, electricity or telephone service to the **Home/Holiday Home**, and caused by or resulting from an **act of terrorism**

- (c) pollution and contamination
- (v) Loss or damage to **Money**
- (a) unless the loss is reported within 24 hours to the police;
- (b) due to currency fluctuations, or shortage caused by error or omission;
- (c) held for business purposes.
- (vi) Theft of unattended bicycles unless they are securely locked to a permanent fixture at the time of theft.

Section D: Your Liabilities

If the **Buildings** are covered under Section A of this **Policy**, **You** are automatically insured for **Your** personal liability as owner of the relevant **Home/Holiday Home**.

If the **Contents** are covered under Section B of this **Policy**, **You** are automatically insured for the following:

- **Your** liability to the domestic employees **You** employ to work for **You** at the **Home/Holiday Home**;
- **Your** liability as occupier of the **Home/Holiday Home**;
- **Your** personal liability.

However, if the insured named in the **Schedule** is a named company and not an individual person, the cover for **Your** liability as occupier of the **Home/Holiday Home** and for **Your** personal liability applies to the people living in the **Home/Holiday Home** and not to the named insured. In this case, for the purpose of this cover only, the definition of **You** is amended to "the beneficial owner of the **Home/Holiday Home** and all permanent members of that person's household including the domestic staff who live in the **Home/Holiday Home**".

Your liability to **Your** employees

What is covered?

The Insurer will cover **You** up to the amount shown in the **Schedule** against any claim for damages which **You** may legally have to pay for an accident which causes bodily injury or disease to the domestic employees **You** employ to work for **You** at the **Home/Holiday Home**. The accident must happen during the **Period of Insurance** and arise from the work the domestic employees are employed to do for **You** at the address shown in the **Schedule** or elsewhere within the country in which the **Home/Holiday Home** is situated. This includes costs and expenses **The Insurer** agrees to in advance to defend the claim. All claims caused by one accident are agreed to be one claim however many of **You** may be legally liable for the accident.

What is not covered? - The following extra exclusions also apply to "**Your** liability to **Your** employees"

The Insurer does not cover the following:

1. **Your** liability arising out of or from :
 - (a) any work **Your** employees do for **You** other than domestic duties contracted here;
 - (b) **Your** employees' work in the United States of America or Canada after they have been in either or both of these countries for 90 days in total during the **Period of Insurance**;
 - (c) passing on any infectious disease or any virus, syndrome or illness; or
 - (d) any motorised vehicle being used on a public road or in circumstances where any Road Traffic Act or similar legislation says that **You** must have motor liability insurance.

Amounts which are, or should be, paid by any local social security or similar agency. However, this exclusion does not apply to amounts which would otherwise be covered by this **Policy** and which **You** are legally liable to refund to such agencies.

Your liability for fines or penalties, or for damages which are only intended to punish **You** or to make an example of **You**.

The liability of anyone who is a resident of the United States of America or Canada.

Your liability to other people not connected to insured or insured's **Family** What is covered?

- (a) **Your** liability as owner or occupier of the **Home/Holiday Home**. **The Insurer** will cover **You** against any claim for damages which **You**, as owner or occupier, may legally have to pay for an accident which causes bodily injury or physical damage to property and happens during the **period of insurance** in or about the **Home/Holiday Home**.
- (b) **Your** personal liability

The Insurer will cover **You** against any claim for damages which **You** may legally have to pay for an accident which causes bodily injury or physical damage to property and happens during the **Period of Insurance**.

This cover applies anywhere in the world, but **The Insurer** will not cover **Your** liability for accidents which happen in the United States of America or Canada if **You** have been in either or both of those countries for more than 90 days in total during the **Period of Insurance**.

The most **The Insurer** will pay for any one accident or claim is the amount shown in the **Schedule**. All claims caused by one accident are agreed to be one claim however many of **You** may be legally liable for the accident.

The Insurer will also pay any costs and expenses that it agrees to in advance to defend the claim.

What is not covered?

The following extra exclusions also apply to "**Your** liability to other people".

The Insurer does not cover the following:

1. **Your** liability for injury to **You** or for injury to **Your** employees arising from their work for **You** and not connected to insured's **Family**
2. **Your** liability for loss of or damage to property which belongs to **You** or is in **Your** or **Your** employee's care, other than damage to property for which **You** as tenant are legally liable to the owner.
3. **Your** liability arising out of:
 - (a) owning, occupying, possessing or using any land or building not at the address shown in the **Schedule**;
 - (b) any business, profession or occupation, or any activity being carried out on **Your** land or in **Your Home/Holiday Home** from which **You** derive a revenue other than letting the **Home/Holiday Home**;
 - (c) passing on any infectious disease or any virus, syndrome or illness;
 - (d) any aircraft or watercraft;
 - (e) any motorised vehicle other than domestic gardening equipment or wheelchairs;
 - (f) any animal other than a horse or domestic pet; or
 - (g) any contract, unless **You** would have been liable by law if the contract had not existed.
4. **Your** liability arising out of the pollution or contamination of air, water or soil unless the pollution or contamination was caused by an accident in the country in which the **Home/Holiday Home** is situated during the **Period of Insurance** and:
 - (a) **You** tell us about the accident as soon as reasonably possible but no later than 60 days after the end of the **Period of Insurance**; and
 - (b) **You** prove that the pollution or contamination was caused immediately after the accident by a sudden release which could be identified and was not deliberate or expected.

The most **The Insurer** will pay in total for all such claims covered in the **Period of Insurance** is Euro 1,000,000, including costs and expenses.

5. **Your** liability arising directly or indirectly out of:
 - (a) biological or chemical contamination. This includes poisoning, or preventing or limiting the use of an object, due to the effects of any biological or chemical agent, or
 - (b) any failure in the supply of gas, water, electricity or telephone service to the **Home/Holiday Home**, and caused by or resulting from an **act of terrorism**.
6. **Your** liability arising out of any goods or products designed, manufactured, constructed, altered, repaired, serviced, treated, sold, supplied or distributed by **You**.
7. Claims arising as a result of any treatment, wrongful specification or professional advice or service by **You** or an employee where rendered to a third party for a fee.
8. **Your** liability for fines or penalties, or for damages which are only intended to punish **You** or to make an example of **You**.
9. The liability of anyone who is a resident of the United States of America or Canada.

Section E: EMERGENCY TRAVEL

If the Home/Holiday Home suffers physical loss or physical damage in Excess of the amount shown in the Schedule and this is insured under section A, (Standard Perils 1. Fire, lightning, explosion, earthquake or volcanic eruption, or 2. Wildfire) or section B, (Standard Perils 1. Fire, lightning, explosion, earthquake or volcanic eruption, or 2. Wildfire), The Insurer will pay for the cost of air travel and in the event of the Home/Holiday Home being uninhabitable the costs of temporary accommodation and/or expenses You incur, for Yourself and Your immediate Family. The Insurer will only pay if You have had its prior approval and if The Insurer was notified within 21 days of the date of the loss or damage. You must retain all travel documents and receipts for all expenses You incur as they will form the basis for the settlement of Your claim. The most The Insurer will pay is as per the amount shown in the schedule for:

- per return ticket
- temporary accommodation and other expenses
- total for any one Period of Insurance.

Data Protection Notice - LBS0046D

Who we are

We are Lloyd's Insurance Company S.A. (hereafter referred to as 'Lloyd's Europe') an insurance company authorised and regulated by the National Bank of Belgium (NBB) and regulated by the Financial Services and Markets Authority (FSMA). Its registered office is at Place du Champ de Mars 5, Bastion Tower, 14th floor, 1050 Ixelles, Belgium. Its company/VAT number is BE 0682.594.839, RPR/RPM Brussels. LIC is a wholly owned subsidiary of the Society of Lloyd's, 1 Lime Street, London, EC3M 3HA, United Kingdom (Society of Lloyd's).

What personal information we process about you

We collect and use relevant information about you to provide you with the insurance cover or the insurance cover that benefits you, and to meet our legal obligations and the obligations of others in the insurance chain. This information includes details such as your name, address and contact details and any other information that we collect about you in connection with the insurance cover, or the cover from which you benefit. This information may include special categories of personal data details such as information about your health and any criminal convictions you may have.

Why we collect your personal information and the lawful basis for processing

We collect and use your personal data to provide you with the insurance cover. The legal basis is the contract performance with you as the data subject and the compliance with legal obligations, amongst other insurance and tax law obligations. For processing sensitive health personal data, the general legal basis is the consent, unless there is a local statutory right to do so as a legal basis. For processing child personal data, the legal basis is the consent given or authorised by the holder of parental responsibility over the child. Finally, we can also process your personal data for fraud prevention and detection with legitimate interest as the legal basis.

Who we are sharing your personal data with

The way insurance works means that your information may be shared and used by several third parties in the insurance sector, inside and outside the European Economic Area-EEA. For example, insurers, insurance agents or insurance brokers, reinsurers, loss adjusters, sub-contractors, regulators, law enforcement agencies, fraud and crime prevention and detection agencies and compulsory insurance databases. We will only disclose your personal information in connection with the insurance cover that is provided, and to the extent that it is needed or allowed by law. From time to time we may need to share your personal information with third parties outside EEA and we will always take steps to ensure that any international transfer of information is carefully managed to protect your rights and interests: - We will only transfer your personal information to countries which are recognised as providing an adequate level of legal protection or where we can be satisfied those alternative arrangements are in place to protect your privacy rights. - Transfers to service providers and other third parties will always be protected by contractual commitments and where appropriate further assurances. - Any requests for information we receive from law enforcement or regulators will be carefully checked before personal information is disclosed.

How long we keep your data

We keep your personal details for no longer than is necessary in offering the insurance arranged or to comply with our legal or regulatory requirements. We will securely delete or erase your personal information if there is no valid business reason for retaining your data. In exceptional circumstances, we may retain your personal information for longer periods of time if we believe there is a prospect of litigation, in the event of any complaints or there is another valid business reason the data will be needed in the future.

Other people's details you provide to us

Where you provide us, or your insurance agent or insurance broker, with details about other people, you must ensure that this data protection notice is provided to them.

Complaints, contacting us and the regulator, and your rights

If you wish to know how we use your information or see a copy of our full Privacy policy, please contact us LloydsEurope.DataProtection@lloyds.com or go to the Privacy policy at website www.lloydseurope.com where we have full details. You have the following rights in relation to the information we hold about you: Right to access, right to rectification, right to erasure, right to restriction of processing, right to data portability, right to object, right to withdraw consent. If you wish to exercise your rights, you need contact the insurance agent or insurance broker that arranged your insurance at:

Email: cyprus@abbeygate.cy Tel: +357 26 819 175 You have the right to lodge a complaint with the competent data protection authority, but we encourage you to contact us before doing so.

Consent

For processing health or genetic personal data, and for processing child personal data below the age of 16, in connection with the insurance cover, the insurance agent or insurance broker that arranged the contract will ask you to obtain your consent through the data protection consent form, except in countries where, for the processing of sensitive health personal data, in the context of an insurance policy, there is a local statutory right to do so. The processing of child personal data will be lawful if the consent is given or authorised by the holder of parental responsibility over the child. Member States may provide by law for a lower age for those purposes provided that such lower age is not below 13 years. You are free to give us your consent, however, if you do not give your consent, or you withdraw your consent, this may affect our ability to provide the insurance cover from which you benefit and may prevent us from providing cover for you or handling your claims.

Contact details of the Data Protection Officer

If you have any questions relating to data protection that you believe we will be able to answer, please contact our Data Protection Officer: Data Protection Officer Lloyds Insurance Company S.A. Bastion Tower Place du Champ de Mars 5 1050 Bruxelles Belgium Email: LloydsEurope.DataProtection@lloyds.com

LBS0046D

17/03/2023

DATA PROTECTION CONSENT FORM WORDINGS - CLAIMS STAGE -

LBS0048A

Personal information consent for claim form wordings

Your personal information

We, Lloyd's Insurance Company S.A. (hereafter referred to as 'Lloyd's Brussels'), and other insurance market participants need your consent to use special categories of personal data details about you set out below in connection with the claim. You do not have to give your consent and you may withdraw your consent at any time by sending an e-mail to data.protection@lloyds.com without however affecting the lawfulness of processing based on consent prior to its withdrawal. However, if you do not give your consent, or you withdraw your consent, this may prevent us from handling or otherwise affect our ability to handle your claim. Do you consent to the use of data and information about your racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, genetic or biometric data, health, sex life or sexual orientation or criminal convictions {delete/amend as appropriate} in connection with your claim? Yes / No

Other people's details you provide to us

Where you provide us with details about other people, we also need their consent to use the special categories of personal data details about them set out below in connection with this claim. We need you to confirm that you have obtained their consent before you give those details to us and that you have provided them with a copy of our short form privacy notice. Have you obtained the consent of each other person whose information you will provide to us in connection with your claim to the use of data and information about their racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, genetic or biometric data, health, sex life or sexual orientation or criminal convictions {delete/amend as appropriate} in connection with this claim? Yes / No Have you provided to each other person whose information you will provide to us, a copy of our short form privacy notice?

Complaints Procedure - What to do if You have a complaint

Complaints Notice - Portugal - LBS0064F

Any complaint should be addressed to: Head of Complaints Management Lloyd's Insurance Company S.A. Bastion Tower Marsveldplein 5 1050 Brussels Belgium Tel: +32 (0)2 227 39 40 E-mail: lloydseurope.complaints@lloyds.com {If the coverholder or DCA has complaints handling authority, please insert the name and contact details but without deleting the reference to Lloyd's Insurance Company S.A. above, which must remain in any case. If the coverholder or DCA does not have complaints handling authority or there is no coverholder in the placement chain, the contact details of Lloyd's Insurance Company S.A. are as stated above.} Complaints may also be addressed to Abbeygate Insurance Brokers Limited, Shop 1 Mesogi Avenue, Paphos, 8280, Cyprus. Telephone: +357 26 819 175. E-mail: cyprus@abbeygate.cy. Complaints must be filed in writing, on a durable medium, preferably digital, and must contain all information necessary for adequate handling, including full details of the complainant and a clear description of the facts giving rise to the complaint. Your complaint will be acknowledged in writing within 5 (five) business days of the complaint being made. At that moment, you will be informed of the date when the investigation is expected to be finished. A decision on your complaint will be provided to you, in writing, within 20 (twenty) business days [or 30 (thirty) business days for exceptional or complex cases] of the complaint being received. Should you remain dissatisfied with the final response or if you have not received a final response within 20 (twenty) business days [or 30 (thirty) business days for exceptional or complex cases] of the complaint being received, you may refer your complaint to the independent Customers' Ombudsman appointed by Lloyd's Insurance Company. The Ombudsman will review the complaint within 30

(thirty) business days of receipt [or 45 (forty-five) business days in exceptional cases] and issue a recommendation accordingly.

The contact details are:

Mr Goncalo Vareiro FIRM Fragoso, Vareiro Sociedade de Advogados SP, RL Avenida Liberdade, 67-B, 2A 1250-140 Lisboa Portugal Tel: +351 213472251 E-mail: gv@firm.legal

You may also bring a complaint before the Authority for the Supervision of Insurance and Pension Funds (ASF).

The contact details are below:

Authority for the Supervision of Insurance and Pension Funds (ASF) Av. da Republica, 76 1600-205 Lisbon Portugal Tel: (351) 21 790 31 00 Fax: (351) 21 793 85 68

The complaints handling arrangements above are without prejudice to your right to commence a legal action or an alternative dispute resolution proceeding in accordance with your contractual rights.

LBS0064F

01/04/2025